

		Defendant breached the Lease by failing to make said payments. Defendant David Kent Riemann aka Dave Kent Riemann was the Guarantor on the Lease. Plaintiff has performed all of its obligations under the terms of the Lease, except as excused or prevented by the conduct of 520 Capital. 520 Capital breached the Lease. Plaintiff has been damaged in the total amount of \$141,466.60 plus prejudgment interest. Defendants have refused to return the Vehicle which has a value of \$93,900.00. Plaintiff believes that Defendants are in possession of the Vehicle at 17 Cornflower Street, Coto De Caza, CA 92679. Code Civ. Proc. Section 512.010 provides the statutory framework for an application for a writ of possession. Pursuant to subd. (b)(5) of Code Civ. Proc. Section 512.010, the application must include a statement that the property has not been taken under a statute for a tax, assessment, or fine. Here, Plaintiff's application or supporting documents fail to contain such a statement. Moreover, Plaintiff has the burden of proof on the prima facie case. (Code Civ. Proc. § 512.060.) As Plaintiff fails to comply with Code Civ. Proc. Section 512.010, Subd. (b)(5), a writ cannot be granted and the Application for Writ of Possession is DENIED WITHOUT PREJUDICE. The Case Management Conference is continued to August 20, 2027 at 1:30 p.m. <i>Moving Party to give notice.</i>
101	Ally Bank vs. Carmona, 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Plaintiff has filed a proof of service showing that the Summons, Complaint, and Notice of Application for Writ of Possession and Hearing were served by substituted service on May 24, 2026 after personal service could not with reasonable diligence be effected. The documents were thereafter mailed on May 28, 2026 and service was therefore complete on June 8, 2026. Defendant has failed to file any opposition. Here, the Declaration of Fernando Caballero establishes that Defendant entered into a contract with the Car Castle dealership for the purchase of the subject vehicle and secured financing for the purchase through Plaintiff. (Declaration of Fernando Caballero ¶ 6.) The dealership has assigned all of its interest in the contract to Plaintiff. (Ibid.) Pursuant to the terms of the contract, upon default of any provision thereof, Plaintiff has the right to immediate possession of the subject vehicle. (Id. ¶ 8.) Defendant is in

		default for failing to make any of the required payments since October 8, 2024 and the sum of \$72,730.46 remains due and unpaid to Plaintiff. (Id. ¶ 9.) Plaintiff's files reflect that Defendant resides at 15543 Rayen Street, #28, North Hills, California 91343 and to the best of Plaintiff's knowledge, that is the current location of the subject vehicle. (Id. ¶ 13.) Plaintiff has established the probable validity of prevailing on its claim to possession of the subject vehicle. Thus, Plaintiff's Application for Order for Writ of Possession is GRANTED. The Court finds that Defendant has no interest in the subject vehicle and therefore waives the requirement of Plaintiff's undertaking. (Code Civ. Proc., § 515.010(b).) The Case Management Conference is continued to August 27, 2026 at 1:30 p.m. <i>Moving party to give notice.</i>
102	Daniels vs. Balderas, 25-01515105	<i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>
103	Alpine Equipment Funding, Inc. vs. Guerra, 23-01328771	<i>Continued to July 30, 2026 at 1:30 p.m. No further briefing allowed.</i>
104	Foroughi vs. Mercedes-Benz USA, LLC, 25-01535962	<i>Continued to September 17, 2026 at 1:30 p.m. No further briefing allowed.</i>
105	Zhejiang Zheshang Asset Management Co., Ltd. vs. Xinwen, 23-01367893	<i>Continued to September 10, 2026 at 1:30 p.m. No further briefing allowed.</i>
106	Revelo De Rosales vs. American Honda Motor Co., Inc., 24-01444493	Defendant AMERICAN HONDA MOTOR CO., INC. ("AHM") seek an order compelling Plaintiffs to produce their 2023 Honda Ridgeline, VIN: 5FPYK3F88PB062437 for inspection and non-destructive testing at Buena Park Honda located at located at 6411 Beach Blvd., Buena Park, CA 90621 within 14-days. AHM seeks monetary sanctions against Plaintiffs and/or their counsel of record Prestige Legal Solutions, P.C. in the amount of \$2,028.00 pursuant to CCP § 2023.010 subd. (d) and 2031.300 subd. (c) for failing to produce the Subject Vehicle for inspection. Defendant American Honda Motor Co., Inc. seeks an order compelling the deposition of Plaintiff MARTA E. REVELO DE ROSALES ("Plaintiff") pursuant to CCP §§ 2025.450, subdivision (a), and 2025.480, subdivision (a), for an order compelling Plaintiff's deposition within 7-days. AHM seeks